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File No.: EXP202400625

RESOLUTION No.: R/01072/2024

Considering the complaint filed on November 21, 2023, with this Agency by A.A.A., against CAIXABANK PAYMENTS & CONSUMER, E.F.C., E.P., S.A., for not having duly attended to their right of access.

Following the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the complainant) exercised their right of access against CAIXABANK PAYMENTS & CONSUMER, E.F.C., E.P., S.A. with NIF A08980153 (hereinafter, the respondent) and their request, as stated by the complainant, did not receive the legally established response.

The complainant states that they requested their right of access on March 30, 2023, specifically asking for the contract numbers of those from whom credit rights had been assigned to the company EOS SPAIN, S.L., as well as the documentation they had signed related to those contracts.

Furthermore, they assert that they received a partial response to the exercised right of access, not receiving a response regarding the aforementioned contracts.

The complainant provides various documents related to the complaint filed with this Agency and regarding the exercise of the right exercised, in particular:

- Copy of the letter received notifying them of the assignment of credit rights;
- Copy of the request for the right of access;
- Copy of the responses received regarding said request.

SECOND: In accordance with Article 65.4 of the LOPDGDD, which has provided a mechanism prior to the admission of complaints filed with the AEPD, consisting of transferring them to the Data Protection Delegates designated by the data controllers or processors, for the purposes provided for in Article 37 of the aforementioned regulation, or to them when they have not been designated, the complaint was forwarded to the respondent entity for analysis and to respond to the complainant and this Agency within one month.

On March 4, 2024, the respondent submitted a response to the transfer action and request for information to the AEPD's Electronic Registry, in which they stated: "The assignment of credit is an operation by which a creditor (assignor of the credit right) transfers to a third party (assignee) the collection rights derived from an outstanding credit, and is regulated in the Civil Code (Article 1526 and following) and in the Commercial Code (Article 347 and following). The original debtor (assigned debtor), whose payment obligation is the subject of the assignment, is not part of the assignment transaction since the aforementioned regulations do not require the expression of any consent for the credit assignment operation to occur.

The complainant, in their capacity as assigned debtor, received the appropriate notifications of the operation that was carried out, granted by means of a public notarial deed. In these notifications, the consequences of the assignment made are communicated, especially regarding the protection of personal data.

Regarding the exercise of rights by the complainant, CaixaBank Payments & Consumer must inform that the complainant exercised the right of access to their personal data on March 30, 2023, before it, which responded to it by letters dated April 25 and May 10, 2023.

Notwithstanding the above, CaixaBank Payments & Consumer again responds to this new right of access exercised by the complainant within the framework of their complaint, by sending, to the postal address of the complainant as recorded in their systems - C/. Roger de Lluria, nº 134, BJ 3, 08223 TERRASSA (BARCELONA) (on March 6, 2023)."

CAIXABANK, S.A. and NUEVO MICRO BANK, S.A.U. state that: "The credit subject to assignment does not correspond to this company (CaixaBank) but to CAIXABANK PAYMENTS & CONSUMER, E.F.C., E.P., S.A.U., a company of the CaixaBank Group.

(...) In connection with this complaint, a response has been provided to the complainant in the same terms as that submitted to the Agency in this document."

THIRD: This authority, taking into account such circumstances, by resolution dated March 11, 2024, proceeded to archive the complaint, considering, after analyzing the reasons presented by the respondent, which are in the file, in light of the actions taken, that the complainant's request had been attended to in accordance with personal data protection regulations.

FOURTH: Dissatisfied with the resolution, on March 11, 2024, the complainant filed a motion for reconsideration arguing that there had been a misinterpretation of the object of the complaint since it was not that no response had been given to the right of access, but rather that the response was partial, not providing all that was requested.

FIFTH: In light of this submission, on June 25, 2024, this authority issued a resolution on the motion for reconsideration presented, proceeding to uphold it based on the following arguments:

"...Well, in the analyzed case, the appellant argues that they did not file a complaint for denial under Article 15 of the GDPR, but for violation of Article 4 of the GDPR. It should be specified that the appellant provided the document dated March 30, 2023, in which they exercised "the RIGHT OF ACCESS AND...

3/8

"REQUEST for my data" in accordance with the provisions of the GDPR to substantiate your unaddressed request. Furthermore, it should be specified that Article 15 of the GDPR outlines the content of personal data that must be provided to the interested parties concerned, according to the definition of personal data established by Article 4 of the GDPR. Thus, the responding party, in response to the transfer action and request for information, stated that on December 18, 2020, a contract for the sale of credit rights was signed, which included those of the appellant, with EOS SPAIN, S.L., whereby the latter became the new creditor of the appellant. It was stated that the appellant was notified of their new status as an assigned debtor, as evidenced by the documentation provided by them dated February 17, 2021. Additionally, it was reported that a response to the appellant's access request was provided on April 25 and May 10, 2023, denying it with justification because, except for those personal data processed for the purpose of handling their request, there were no personal data concerning them in their files. However, in light of the complaint filed by the appellant, they proceeded to send a new response dated March 6, 2024. Finally, the responding party, in response to the hearing procedure of this appeal for reinstatement, stated that they have responded to the appellant, providing the numerical codes of the contracts whose credit rights have been assigned to the company EOS SPAIN, S.L. However, neither the sending nor the receipt of this response has been substantiated. Likewise, there has been no substantiation of the response providing or justifying the denial of the documentation showing the personal data and the signature of the appellant."

Based on these arguments, the dispositive part of the resolution concluded as follows:

"TO GRANT the appeal for reinstatement filed by A.A.A. against the resolution of this Agency issued on March 11, 2024, by which the claim regarding CAIXABANK PAYMENTS & CONSUMER, E.F.C., E.P., S.A. was archived, so that its processing may continue."

SIXTH: As a consequence of the granting of the aforementioned appeal for reinstatement, the present rights procedure was opened, transferring the documentation to the responding party, so that within ten working days they could present the allegations they deemed appropriate. They proceeded to submit their response in writing on 15/07/2024, stating, in summary, the following:

Firstly, they assert that throughout the procedure it has been demonstrated that the right of access has been addressed by CaixaBank Payments & Consumer, which has also addressed it again within the framework of the appeal for reinstatement filed by the claimant. They also provide a copy of the letter sent to the claimant responding to and again addressing the exercise of the right of access, to the postal address that is recorded in their systems, proof of sending, and a certificate of impossibility of delivery issued by Correos stating that the shipment has been Returned to Origin due to Excess, as it was not collected by the recipient from the postal office. They conclude their writing by stating that the lack of receipt of the

4/8

The documentation is attributable to the claimant since they have correctly submitted it.

SEVENTH: Once the written submission from the responding party was examined, it was forwarded to

the claimant, so that, within ten working days, they could formulate any allegations they deemed appropriate. On 16/07/2024, a submission was received from them stating, in summary, the following: They assert that they have not received any communication from Correos and that, in any case, they expressly indicated in their request that the response should be sent to the email address they provided.

EIGHTH: A hearing was again granted to the responding party regarding such statements, and through a written submission presented on 09/08/2024, they stated, in summary, the following: They reiterate the validity of the means of transmission used to satisfy the right exercised by the claimant and inform that, nevertheless, they have proceeded to meet their request exceptionally by sending the information to the email address indicated by the claimant. They provide a copy of the documentation sent and the email sent. In the documentation sent, it is noted that the number of the assigned contracts is included, but there is no reference to all the aspects covered in Article 15 of the GDPR, nor to signed documentation related to those contracts or other documents ceded that contain the personal data of the claimant.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In the case at hand, the initiation of this procedure originates from the acceptance of the administrative appeal filed by the claimant for not having fully responded to the access request made by the claimant, pursuant to Article 64.1 of the LOPDGDD, which states:

"When the procedure exclusively concerns the failure to address a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the time limit for resolving the procedure will be six months from the date on which the claimant was notified of the admission agreement. Once this period has elapsed, the interested party may consider their complaint accepted."

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers to correct any infringement of the GDPR, including "ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the

GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish means and mechanisms to facilitate the exercise of rights by the data subject, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than a

6/8

unless it can demonstrate that it is unable to identify the interested party, and to express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the responsible party.

The communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the interested party has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to such personal data."

Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the responsible party may request the affected party to specify the "data or processing activities to which the request refers." The right will be considered granted if the responsible party provides remote access to the data, thus fulfilling the request (although the interested party may request information regarding the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that entails a disproportionate cost, which must be borne by the affected party.

Like the other rights of the interested party, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them and being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the origin of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others.

V

Conclusion

C/ Jorge Juan, 6

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7/8

In the case analyzed here, the claimant exercised their right of Access and, after the period established in the aforementioned regulations had elapsed, their request did not receive the legally

required response, as the requested access was not provided.

The aforementioned regulations do not allow the request to be disregarded as if it had not been made, leaving it without the response that the responsible parties are obliged to issue, even in the event that there are no data of the interested party in the entity's files or even in those cases where the requirements set forth are not met, in which case the recipient of such a request is likewise obliged to require the rectification of the observed deficiencies or, if applicable, to deny the request with justification indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the responsible party to provide an express response, in any case, using any means that justifies the receipt of the response.

In this case, however, it is noted that during the processing of the complaint that gives rise to this procedure, formulated precisely due to the lack of an adequate response to the request for the exercise of rights, the respondent has provided documentation evidencing the communication sent to the interested party partially addressing the requested right, but without informing about the decision made regarding the other aspects referred to by the claimant in the exercise of their right. Likewise, this response, therefore, occurs after the established deadline has been exceeded.

Considering the cited provisions and other generally applicable regulations, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ACCEPT the complaint filed by A.A.A. as it is considered that the provisions of Article 15 of the GDPR have been infringed, and to urge CAIXABANK PAYMENTS & CONSUMER, E.F.C., E.P., S.A. with NIF A08980153, to send to the claimant, within ten working days following the notification of this resolution, a certification addressing the requested right or denying it with justification indicating the reasons why the request cannot be attended to, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same timeframe. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: TO NOTIFY this resolution to A.A.A. and to CAIXABANK PAYMENTS & CONSUMER, E.F.C., E.P., S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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8/8

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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